Effective Date: ***Insert Date***

Prepared for:

Insert Client Name

Prepared by:

The Hello Team LLC

422 Butterfly Road

Jackson, NJ 08527

www.thehelloteam.com

AGREEMENT

SERVICE AND NON-CIRCUMVENTION

SERVICE & NON-CIRCUMVENTION AGREEMENT

This Contract for Service ("Agreement") is entered into as of _____ ("Effective Date") by and between:

PARTIES

For purposes of this Agreement, the term **"Recipient"** shall mean **both**:

1. The business entity receiving services, **and**
2. The individual signing this Agreement ("Signer"),

who shall be **jointly and severally liable** for all obligations under this Agreement.

Recipient (Business Entity): Name:_____

Address: _____

Business EIN: _____

Signer (Individual) Name: _____

Address: _____

Social Security Number:_____

Provider: The Hello Team LLC 422 Butterfly Road Jackson, NJ 08527

1. SCOPE OF SERVICES

1.1 Provider shall supply Recipient with "Personnel" this includes recruitment, payroll administration, HR management, and operational oversight for the number of full-time employees or freelancers requested by Recipient.

1.2 Provider shall execute agreements with Personnel enforceable under U.S. law, and Personnel engaged under contract are not entitled to employee benefits or payroll tax deductions.

1.3 Each Personnel member shall work a minimum of **40 hours per week**, aligned with Recipient's operational needs.

1.4 This Agreement automatically applies to all current Personnel, all future Personnel, all replacement Personnel, and any increase in headcount. No new contract is required for additions or replacements.

2. PRICING AND WORK HOURS

2.1 Recipient shall pay the hourly rates listed in **Exhibit A** for all hours worked.

2.2 Minimum weekly hours (40 hours) are billable regardless of workload changes.

2.3 Time is tracked via Provider's clock-in/out system.

2.4 A 30-minute paid lunch break is included daily.

2.5 Personnel may clock in/out within a 5-minute window, billable to Recipient.

2.6 Personnel receive **3 paid vacation days every 6 months**, funded by Recipient.

2.7 December 25, January 1, and Thanksgiving are paid holidays.

2.8 Overtime requested by Recipient is billable.

2.9 Unauthorized overtime will be billed but may be offset by reducing future hours.

3. PAYMENT TERMS

3.1 **Billing Structure:** Provider shall bill weekly. (a) Billing cycle: Monday–Sunday (b) Invoice issued: Wednesday (c) Payment processed automatically via the payment method on file (d) Invoices may be combined if delayed due to holidays or system issues

3.2 **Payment Liability:** Recipient is fully and unconditionally liable for: (a) All billed hours (b) All payments owed after termination (c) All fees, penalties, and costs associated with non-payment including but not limited to collection costs and attorney's fees.

3.3 **Late or Failed Payments:** Late, declined, or missing payments may result in: (a) Suspension of services (b) Removal of Personnel (c) Interest charges (d) Legal action (e) Recovery of all collection costs.

3.5 **Required Payment Method Maintenance:** Recipient shall complete Exhibit B – Payment Method Authorization and provide Provider with at least one valid credit card and ACH account for billing purposes. Recipient shall ensure that all Payment Information on file remains continuously active, accurate, and fully capable of processing payments for the duration of this Agreement.

If any payment method becomes expired, invalid, declined, deactivated, or otherwise unusable, Recipient shall provide updated Payment Information immediately, and in no event later than 24 hours after notice or discovery.

Failure to maintain a valid payment method constitutes a material breach, and Provider may suspend services or remove Personnel without liability.

4. EXCLUSIVITY AND NON-CIRCUMVENTION

4.1 All Personnel remain exclusively contracted through The Hello Team.

4.2 Recipient is prohibited from: (a) Hiring Personnel directly (b) Paying Personnel directly (c) Engaging Personnel after resignation or termination (d) Using Personnel to source offshore or nearshore workers (e) Requesting or accepting referrals from Personnel (f) Circumventing Provider in any manner.

4.3 In jurisdictions requiring a local partner agency: (a) The partner agency is part of Providers delivery structure (b) Recipient may not engage the partner agency directly (c) Recipient may not hire workers from the partner agency (d) Recipient may not receive referrals from the partner agency (e) Recipient may not send payments to the partner agency.

4.4 If contacted directly by partner agency, Recipient **must** decline communication and notify Provider immediately.

4.5 Recipient may only hire or engage offshore, nearshore, or non-U.S. workers introduced or sourced by Personnel if: (a) Provider has given written permission, and (b) The Personnel is onboarded through Provider

4.6 Permitted activities include: (a) Managing employees (b) Managing teams or operations (c) Recruiting U.S.-based workers (d) Hiring U.S.-based workers directly.

4.7 Recipient agrees that any **breach of the terms relating to "exclusivity and non-circumvention" will results in a fee of $20,000 per individual, per incident plus all other legal remedies.**

5. TERMINATION

5.1 **Provider's Right to Terminate:** Provider may, at its sole and absolute discretion, suspend services, remove any Personnel, or terminate this Agreement at any time, with or without cause, and without any liability, penalty, refund obligation, or damages of any kind to Recipient.

Recipient acknowledges and agrees that: (a) Provider owes no notice period; (b) Provider is not responsible for delays, losses, costs, or damages resulting from termination or

Personnel removal; (c) Recipient remains responsible for all outstanding balances, including hours worked up to the moment of termination.(d) Under no circumstances shall Provider be liable for any direct, indirect, incidental, consequential, or special damages resulting from termination or Personnel removal.

5.2 **Termination by Recipient:** If Recipient suspects improper activity by any Personnel, they may terminate that individual and must immediately revoke all access to Recipient's systems and software. The remaining Personnel and this Agreement shall remain in full effect.

5.3 **Communication After Termination:** Recipient must cease all communication with Personnel upon termination, regardless of who initiated the termination.

6. CYBERSECURITY, BEHAVIOR LIABILITY, AND EQUIPMENT

6.1 **No Liability for Security Issues:** Recipient acknowledges and agrees that Provider expressly disclaims all responsibility or liability for cybersecurity breaches, malware infections, or any other security failures caused by Personnel that result in damage to or loss of Recipient's data or systems, including where such conduct is intentional or malicious.

6.2 **No Liability for Personnel Behavior:** Provider shall not be liable for any actions, errors, omissions, misconduct, negligence, or intentional wrongdoing by Personnel. All risk associated with Personnel access, work, and conduct is assumed entirely by Recipient.

6.3 **Recipient System Responsibilities:** Recipient must provide and maintain secure systems, networks, and virtual environments owned or controlled by Recipient. Provider does not supply or manage cybersecurity infrastructure. Recipients understand that they are fully responsible for all cybersecurity and HIPAA compliance, and other relevant security regulations.

6.4 **Personnel Equipment:** Personnel provide and maintain their own equipment including but not limited to laptops or desktop computers and headsets. Provider makes no warranty regarding the safety, performance, or security of such equipment. Recipients are not required to pay for hours missed due to Personnel's equipment issues.

7. INDEMNIFICATION AND HOLD HARMLESS

7.1 Recipient agrees to fully and unconditionally indemnify, defend, and hold harmless The Hello Team LLC, its owners, directors, officers, employees, agents, contractors, and

affiliates (collectively, "Indemnified Parties") from any and all claims, complaints, demands, investigations, liabilities, losses, damages, fines, penalties, regulatory actions, third-party claims, and costs of any kind whatsoever (including attorney's fees and litigation costs), whether direct or indirect, arising out of or relating to:

- Any action, behavior, error, omission, or misconduct of Personnel, including negligent, improper, unauthorized, or intentional acts;
- Any cybersecurity breach, malware infection, data loss, unauthorized access, or system compromise occurring within or connected to Recipient's systems or access provided by Recipient;
- Any use, misuse, or handling of data, credentials, or system access by Recipient or Personnel;
- Recipient's failure to maintain secure systems, passwords, networks, or access controls;
- Any claim by Personnel relating to their work, treatment, compensation, or relationship with Recipient;
- Recipient's breach of this Agreement or failure to follow any legal, regulatory, or compliance obligation.

This indemnification obligation survives termination of the Agreement.

8. <u>GENERAL PROVISIONS</u>

8.1 **Governing law:** This Agreement is governed by New Jersey law.

8.2 **Entire agreement:** This Agreement supersedes all prior agreements.

8.3 **Amendments:** Amendments must be in writing and signed by both parties.

8.4 **Severability:** If any provision of this Agreement is found invalid or unenforceable, the remaining provisions shall remain in full force and effect.

8.4 **Dispute Resolution**: Any dispute arising under this Agreement shall be resolved first through good-faith negotiations. If unresolved within 30 days, the matter will be submitted to binding arbitration in New Jersey under AAA Commercial Rules. The arbitrator's decision is final, with costs shared equally.

8.5 **Confidentiality:** All information exchanged under this Agreement is confidential.

9. SIGNATURES

Provider — The Hello Team LLC: Name: _____

Signature: _____ Date: _____

Recipient (Business Entity + Individual Signer):
Name:_____ Name:_____

Signature: _____ Date: _____

EXHIBIT A — PERSONNEL AND RATES

Employee Name	Position	Hourly Rate	Start Date	Notes
_____	_____	$_____	_____	_____
_____	_____	$_____	_____	_____
_____	_____	$_____	_____	_____
_____	_____	$_____	_____	_____
_____	_____	$_____	_____	_____
_____	_____	$_____	_____	_____

Additional Personnel may be added at any time by email confirmation. All terms apply automatically.

EXHIBIT B — PAYMENT METHOD AUTHORIZATION

Recipient authorizes The Hello Team LLC to charge the payment method(s) listed below for all amounts due under this Agreement.

SECTION 1 — CREDIT CARD AUTHORIZATION

Cardholder Name: _____

Billing Address: _____

City, State, ZIP: _____

Card Type: ☐ Visa ☐ MasterCard ☐ American Express ☐ Discover

Card Number: _____

Expiration Date (MM/YY): _____ CVV: _____

Cardholder Signature: _____ Date: _____

SECTION 2 — ACH AUTHORIZATION

Account Holder Name: _____ Bank Name: _____ Routing Number: _____ Account Number: _____

Account Type: ☐ Checking ☐ Savings

Account Holder Signature: _____ Date: _____

SECTION 3 — REQUIRED CONSENT

Recipient / Signer Name: _____

Signature: _____ Date: _____